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## ENVIRONMENTAL LAW SYNOPSIS FOR EXIT EXAM

### CHAPTER 1

#### INTRODUCTION TO ENVIRONMENTAL LAW

**Meaning of “Environment”**- it includes the aggregate of natural, social and cultural **conditions** that influence the life of an individual or community.

**Introduction to Environmental Law: From International and National Law Perspectives**- international environmental law is nothing more, or less, than the application of international law to environmental problems.

National environmental law includes the provisions concerning the environment in the 1995 FDRE constitution; different environmental treaties, federal and regional laws concerned with the environment (Forestry, Land, Water use and other sectoral laws).

#### **Factors that Gave Rise to Environmental Law: National and International Perspective**

- z existence of an extensive range of environmental problems.
- the question of the relationship between the protection of the environment and the need for economic development (correct balance between)

**Historical Development of International Environment Law**- Rome, London, . . .

Following the United Nations Conference on the Human Environment, held in Stockholm in 1972, the UN established the United Nations Environment Programme (UNEP) as the world’s principal international environmental organization.

**Historical Development of Environmental Law in Ethiopia**- at the wake of 1974 and 1984 draught because it was believed that the draught

was the result of agricultural degradation or environmental mismanagement.

international pressure from the international community, like the Rio Conference in 1992

FDREC art 44, 92, The Environmental Policy of Ethiopia

**Levels of Environmental Law-** international declarations, conventions, and treaties, statutory—i.e., encompassed in the enactments of legislative bodies—and regulatory—i.e., generated by agencies charged by governments with the protection of the environment.

### **The Role of International and National Laws in the Protection of the Environment**

- it provides mechanisms and procedures for negotiating the necessary rules and standards, settling disputes, and supervising implementation and compliance with treaties and customary rules.
- it is concerned with regulating environmental problems, setting common standards and objectives for prevention or mitigation of harm, and providing a flexible rule-making process that allows for easy and regular amendment in the light of technological developments and advances in scientific and other knowledge.
- reinstatement of or compensation for environmental damage is a more limited but still important function.
- it benefits or keeps accountable individuals.

### **Foundations of Environmental Law**

- 1)Religious Traditions- prohibit killing of animals & degrading of land, plants
- 2)Traditional Communities- have long engaged in sustainable practices and developed unique knowledge about their environments and their resources.

### **The Sources and the Law Making Process of Environmental Law**

- |                              |                                            |
|------------------------------|--------------------------------------------|
| A)Constitutional Law         | B)Environmental Legislation                |
| C)Administrative Regulations | D) Industry Standards and Codes of Conduct |
| E)customary laws             |                                            |

### **The Law Making Process of Environmental Law in Ethiopia**

**The Law Making Process of International Environmental Law-** no international legislature, comparable to the national parliament, but there are generally accepted sources from which international law derives, and a variety of international processes through which new international law is made or existing law changed.

**Nature of Environmental Problems-** many of the damages done to the environment may have long term effects or they may involve important synergism in the environment or may not be effectively reversible

environmental danger could possibly jeopardize the very existence of the present generation as well as the future.

Tokyo Declaration reveals that the current environmental problems are caused by factors related to u Today, environmental problems are serious and imminent threats, which suggest a need for drastic or emergency action sustainable use of natural resources, and unprecedented growth of population,

### **Pollution to Environment as International, Regional and National Concern**

Some environmental problems, for example climate change or depletion of the stratospheric ozone layer, are inherently global in character

There are also regional environmental problems like air or water pollution and conservation of migratory animals.

### **The Rationale for the Protection of the Environment**

- industrial developments had not spawned pollution and damage to the environment on a very large scale

- public opinion was not yet sensitive to the potential dangers of industrial and military developments to a healthy environment.

**Nature of Environmental Damages-** damage to the environment does not only cover damage to the environment per se, but it also covers damage to private property and consequential losses that arise there from or in connection with.

### **Damages Forming New and Additional Category of Damage to the Environment**

damage to the publicly owned and publicly possessed natural resources, and to publicly owned but privately possessed natural resources that have a particular value to the public, is damage of a collective nature and because no concrete individual interests are harmed

damages for this type of injury are in principle not recoverable under the traditional tort law.

In respect to the scope of tort law in relation to the environment, there exists a fundamental difference between the environment-related type of damages and damage to the environment per se.

tort law covers only environmental related type of damages.

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## **CHAPTER 2**

### **BASIC PRINCIPLES OF ENVIRONMENTAL LAW**

**Prevention**-is the Golden Rule for the environment, for both ecological and economic reasons. Is measure taken to make environmental risk "as small as practically possible" in order to allow the necessary activities to proceed while protecting the environment and the rights of others.this can be done through

- + **prior assessment of environmental harm**, and

- + **licensing** or authorizations that set out the conditions for operation and the remedial consequences for violation of the conditions.

- + **Emission limits** and **other product or process standards**, the use of **best available techniques** (BAT), and other similar techniques can all be seen as applications of prevention.

- + Prevention is also linked to the notion of **deterrence** and the idea that **disincentives** such as **penalties and civil liability** will cause actors to take greater care in their behavior to avoid the increased costs, thus preventing pollution from occurring.

- + In addition to prevention as a generalized goal of domestic environmental laws, the notion of “pollution prevention” includes the concept that pollution may be reduced, or prevented, at its source, by changing raw materials or production techniques or technologies

**Precaution-** – is the notion that impose duty on environmental regulators to act on the frontiers of knowledge and in the absence of full scientific certainty to take action with respect to a particular environmental concern. Precaution has variously been associated with the ideas that:

- + scientific uncertainty should not be used as a reason not to take action with respect to a particular environmental concern;
- + Action should **affirmatively** be taken with respect to a particular environmental concern;
- + Those engaging in a **potentially damaging** activity **should have the burden of establishing the absence of environmental harm;**  
and
- + A State may restrict imports based on a standard involving less than full scientific certainty of environmental harm.

*Properly viewed, the concept of precaution operates as part of a **science-based approach to regulation**, not a substitute for such an approach, and, in practice, the concept is multi-faceted.*

*The so-called “precautionary approach” is relatively recent, dating from the late 1980s. The Rio Declaration stipulates that:*

***In order to protect the environment, the precautionary approach shall be widely applied by States according to their capabilities. Where***

***there are threats of serious or irreversible damage, lack of full scientific certainty shall not be used as a reason for postponing cost effective measures to prevent environmental degradation.***

**Polluter Pays-** Historically, pollution control costs have been borne by the community at large, rather than by those who pollute. If for example, we take pollution of certain river by industries:

- ✚ downstream community can suffer an economic loss;
- ✚ Hence, the downstream community can build an adequate water treatment plant at its own cost
- ✚ EVEN the polluter(industries) may receive public subsidies for controlling the pollution they cause.

In above case, the affected community bears the cost of the pollution and of the measures designed to eliminate it or to mitigate its effects. The polluter pays principle avoids this result by obliging the polluter themselves to bear the costs of pollution. The polluter pays principle is therefore a method for ***internalising externalities***. Internalisation requires that all the environmental costs be borne by the producer/consumer(industries as in above example) instead of the community as a whole. control, to “internalize” them. The polluter can be defined as one who directly or indirectly damages the environment or who creates conditions leading to such damage.

Generally, polluters should pay for the cost of pollution control measures, such as:

- ✚ the cost of construction and operation of anti-pollution installations,
- ✚ cost of investment in anti-pollution equipment and new processes, so that a necessary environmental quality objective is achieved.
- ✚ *Other means of ensuring the polluter pays principle are through taxes and charges.*
- ✚ When Application of the principle may be difficult due to the fact that polluter has become financially insolvent, there is no alternative and community can assume the costs of remediation.

## **Environmental Justice and Equity**

- ✚ Environmental justice seeks to ensure that authorities fairly allocate and regulate scarce resources to ensure that the benefits of environmental resources, the costs associated with protecting

them, and any degradation that occurs (i.e. all the benefits and burdens) are **equitably** shared by all members of society.

*Environmental justice goes beyond:*

- + *Traditional environmental protection objectives and,*
- + *More broadly, the often disproportionate burden borne by the poor and minority groups in respect to environmental*

## **Public Trust**

The concept of public trust expresses the idea that the present generation holds the natural resources of the earth ***in trust*** for future generations.

### **The Integration Principle-**

- + **is the notion that advocate** integration of environmental considerations into environmental decision-making processes, through both environmental-impact-assessment mandates and other provisions.

Is the integration of environmental, economic, cultural, and social considerations in decision-making processes.

When we come to our legal system the Environmental Policy of 1997 under 4.1.(a) clearly depicts that one of the basic objectives of the policy is to integrate

- + population planning,
- + resources management, and
- + the rehabilitation of and care for the environment to achieve a sustainability of life style.

Furthermore, the preamble of Environment Impact Assessment Proclamation explicitly **stipulates that the integration of environmental, economic, cultural, and social considerations into a decision making process** in a manner that promotes sustainable development is a pressing need.

**Public participation** is the right of those who may be affected to have a say in the determination of their environmental future. Depending on the jurisdiction, this may include foreign citizens and residents.

In many countries citizens may challenge government decisions affecting the environment in court or before administrative bodies.

### **The Obligation of States Not to Cause Damage to the Environment beyond Their Jurisdiction-**

*it is a duty to prevent, reduce and control trans-frontier environmental harm.*

**States ' Obligations to Cooperate, to Inform and to Consult with Other States-** these principles are reflections of the principles of good neighborliness, and diligence.

### **Shared Natural Resources, Common Property and Common Heritage of Man Kind-**

#### **Shared Natural resources**

- is used when one natural resource comes under the jurisdiction of several states. a lake located @ z border ov 2 or more states eg. Ethiopian river Abay.

**Common property-** refers mainly to the living resources outside national jurisdiction, such as fish stocks and other living resources on the high seas. free for the legitimate and reasonable use by all states.

**common heritage of mankind** In a popular meaning, common heritage of mankind is often used as a term for global environmental resources, such as the Earth's biodiversity, the tropical forests or the atmosphere. the concept has a stricter meaning, it refers to two specific non-living resources outside national jurisdiction: the sea-bed mineral resources and the moon.

### **The Principle of Sustainable Development-**



The concept of “*sustainable development*” had already begun to emerge prior to the UN Conference on Environment and Development in 1992, but its defining role in the evolution of international law and policy on protection of the environment secured near universal endorsement at Rio.

sustainable development implies not merely limits on economic activity in the interests of preserving or protecting the environment, but an approach to development which emphasizes the fundamental importance of equity within the economic system. This equity is both intra-generational, in that it seeks to redress the imbalance in wealth and economic development between the developed and developing worlds by giving priority to the needs of the poor, and inter-generational, in seeking a fair allocation of costs and benefits across succeeding generations. Put simply, development will only be ‘sustainable’ if it benefits the disadvantaged, without disadvantaging the needs of the future. On one view, sustainable development implies not merely limits on economic activity in the interests of preserving or protecting the environment, but an approach to development which emphasizes the fundamental importance of equity within the economic system.

is intended to serve not simply the needs of the environment, but entails a reorientation of the world’s economic system in which the burdens of environmental protection will fall more heavily on the developed. HAS 2 ELEMENTS:

#### **SUBSTANTIVE AND PROCEDURAL**

***its substantive elements*** are mainly set out in principles 3-8 and 16 of the Rio Declaration, sustainable utilization of natural resources; the integration of environmental protection and economic development; the right to development; the pursuit of equitable allocation of resources both within the present generation and between present and future generations ( ***intra-and inter- generational equity***),

***its procedural elements*** are found in principles 10 and 17 dealing with ***public participation in decision- making and environmental impact assessment***.

#### SUMMARY

*No legal order can regulate with specific rules any possible conduct of legal subjects. Gaps are bound to exist in the normative network of any community. Hence, the need to resort to general principles, that is, sweeping and rather loose standards of conduct that can be deduced from the various rules by extracting and generalizing some of the most significant common points, so much so that we can safely say that, general principles constitute both the backbone of the body of law governing international dealings and the potent cement that binds together the various and often disparate cogs and wheels of the normative framework of the community.*

*At present, in the world community, two distinct classes of general principles may be relied upon. First, there are general principles of international law, namely those principles which can be inferred or extracted by way of induction and generalization from conventional and customary rule of international law. Second, there are principles that are peculiar to particular branches of international law (the law of the sea, humanitarian law, the law of state responsibility, etc.).*

*As a means of realization of friendly environment, experience and scientific expertise demonstrate that prevention must be the Golden Rule for the environment, for both ecological and economic reasons. This is a burning issue because in some instances it can be impossible to remedy environmental injury once it has occurred. To further consolidate the proactive measures, it is also important to relay on the precautionary approach that shall be widely applied by States according to their capabilities. Where there are threats of serious or irreversible damage, lack of full scientific certainty shall not be used as a reason for*

*postponing cost effective measures to prevent environmental degradation.*

*As a matter of fact, some times the proactive measure may fail to realize their objective and in such a case it is a must case to take reactive measures. Accordingly, the affected community bears the cost of the pollution and of the measures designed to eliminate it or to mitigate its effects. The polluter-pays-principle avoids this result by obliging the polluter to bear the costs of pollution control, to internalize them. In most cases the enterprise will in fact incorporate the costs in the price of the products to some degree and pass them on to the consumer.*

*The polluter pays principle is, therefore, a method for internalizing externalities. Those who benefit from air made cleaner have a positive externality if they do not pay for the cleanup. In general, environmental justice seeks to ensure that authorities fairly allocate and regulate scarce resources to ensure that the benefits of environmental resources, the costs associated with protecting them, and any degradation that occurs (i.e. all the benefits and burdens) are equitably shared by all members of society. Environmental justice goes beyond traditional environmental protection objectives to consider the equitable distribution of pollution, and, more broadly, the often disproportionate burden borne by the poor and minority groups in respect to environmental harm.*

*Once any legal system accommodates both proactive and reactive measures, environmental justice seeks to ensure that authorities fairly allocate and regulate scarce resources to ensure that the benefits of environmental resources, the costs associated with protecting them, and any degradation that occurs (i.e. all the benefits and burdens) are equitably shared by all members of society. Environmental justice goes beyond traditional environmental protection objectives to consider the equitable distribution of pollution, and more broadly, the often*

*disproportionate burden borne by the poor and minority groups in respect to environmental harm.*

*To maintain the flow of natural cycle, measures are expected to be taken at the international plane in addition to the measures that could possibly be taken by individual states. Accordingly, each and every state has the obligation to exercise due diligence. That is, a state must act in a responsible way, with due regard to the interests of other states. It must consider the risks and the possibilities involved, and take reasonable measures to avoid trans-boundary harm. The costs and benefits on the two sides are relevant. The question may be what resources are available on the one hand, and what interests are harmed on the other. The economic situation and the capabilities of the polluting country, and the technical solutions available, are also relevant.*

*To realize the responsibility of states at national and international level, states also have a duty to inform and consult with other states, if activities within their territory may have effects across the borders. More recently, this duty of information has developed into rules on environmental impact assessment, in a trans-boundary context.*

*Finally, it is a must case to notice that sustainable development is a means to an end for the realization of friendly environment. And, to have a clear picture of the subject matter, sustainable development implies not merely limits on economic activity in the interests of preserving or protecting the environment, but an approach to development which emphasizes the fundamental importance of equity within the economic system. This equity is both intra-generational, in that it seeks to redress the imbalance in wealth and economic development between the developed and developing worlds by giving priority to the needs of the poor, and inter-generational, in seeking a fair allocation of costs and benefits across succeeding generations. Put*

*simply, development will only be 'sustainable' if it benefits the disadvantaged, without disadvantaging the needs of the future.*

### *Review Questions*

- 1. Indicate how the basic principles of environmental law are reflected under the Ethiopian legal system.*
- 2. Discuss what the polluter pays principle is.*
- 3. Discuss the importance of states' obligation to cooperate, to inform and to consult with other states.*
- 4. Define what sustainable development is.*
- 5. Pinpoint the elements of sustainable development.*
- 6. Discuss what integration principle is.*
- 7. Discuss the role of the precautionary principle in the realization of proactive measures.*
- 8. Discuss shared natural resources, common property, and common heritages of mankind*
- 9. Discuss the role of public interest litigation in the realization of environmental democracy.*
- 10. Discuss what environmental justice and equity are.*

## **CHAPTER 3**

### **ENVIRONMENTAL RIGHTS**

**The Right to Information-** is a prerequisite to effective public participation in decision-making and to monitoring governmental and private sector activities.

**Public Participation-** is based on the right of those who may be affected to have a say in the determination of their environmental future.

Non-governmental organizations (NGOs) and groups such as trade unions or manufacturers' associations are an organized means of public participation in environmental decision-making.

**Access to Justice-** effective remedy and redress, can be found in both human rights law and in environmental law.

It is not necessarily limited to nationals of a state. Some international agreements contain obligations to grant any injured person.

**Environmental Quality-** Every person has the right to a safe and healthy environment and to compensation for damages resulting from the violation of this right.

no global human rights treaty proclaims a right to environmental quality, although the *UDHR* and other human rights instruments contain a right to an adequate quality of life and a right to health.

the 1981 *African Charter on Human and Peoples Rights* was the first international human rights instrument to contain an explicit guarantee of environmental quality.

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**Chapter 4**

## **COMMON LEGAL MECHANISMS OF ENVIRONMENTAL PROTECTION**

### **Prohibiting and Restricting Activities and Substances**

1) Polluting Activities- activity, product or process presents a substantial risk of environmental harm, strict measures can be imposed in an effort to reduce or eliminate the harm.

2) Use of Biological Resources- Hunting and collecting restrictions, temporary suspensions and permanent bans on imports and exports are commonly utilized for the protection of wild flora and fauna.

**Product and Process Standards-** Standards are prescriptive norms that govern products or processes or set limits on the amount of pollutants or emissions produced.

1)Process Standards- specify design requirements or operating procedures applicable to fixed installations such as factories or may designate permissible means and methods of activities like hunting or fishing.

1)Product Standards- items that are created or manufactured for sale or distribution (physical or chemical composition, handling, presentation and packaging, particularly those that are toxic)

3)Emission Standards- specify the quantity or concentration of pollutants that can be emitted in discharges from a specific source.

4)Ambient Quality Standards- Ambient quality standards fix the maximum allowable level of pollution in an environmental sector during normal periods.

A quality standard may set the level of mercury permissible in rivers, the level of sulfur dioxide in the air or noise level of airplanes in the proximity of residential areas.

**Prior Licensing and Permits** - hazardous installations such as nuclear plants, mines, natural gas or petroleum works are likely to have more stringent licensing requirements than other operations.

Article 3 of the Environmental Assessment Proclamation No 299/2002 International requirements for licensing are increasing as part of the strong trend towards transparency attending the trans-boundary movement and use of substances, products and activities that might have a negative impact on the environment.

**Prior Informed Consent** - is a procedural mechanism utilized in advance of activities in order to avoid potential conflict and reduce the risks of environmental or social harm.

**Environmental Impact Assessment** - is 'a procedure for evaluating the likely impact of a proposed activity on the environment.'

It is fundamental to any regulatory system which seeks to prevent or minimize environmental harm, or to promote sustainable development.

**Monitoring**- a process whereby states 'observe, measure, evaluate and analyze, by recognized scientific methods, the risks or effects' of pollution or environmental harm after the project has begun.

Its purpose is to check initial EIA predictions and determine whether further measures are needed in order to abate or avoid pollution or environmental harm.

**Land Use Regulation-** through zoning physical planning and the creating of protected areas.

Zoning helps distribute activities harmful to the environment in order to limit potential damage and allows application of different legal rules from zone to zone for more effective protection.

a city, a region or the entire territory of a country into broad land use categories such as residential, industrial, agricultural, forest, or nature conservation.

Land Use Regulations and Property Rights may become in conflict.

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## **CHAPTER 5**

### **THE LEGAL FRAMEWORK OF ENVIRONMENTAL PROCEEDING**

#### **1)Legal Personality and Standing; the Environment as a Legal Entity in Itself**

1)Anthropocentric Theory- it refers the relationship between human beings and the environment, as a relationship in which environment is valuable only to the extent to which they can be used and exploited by human beings.

humans and nature as separate, and human beings placed in the center; such that, the environment being instrumental to the interest of man,

the environment being instrumental to the interest of man, legal personality can be bestowed only to human beings.

2)Ecocentric view- fundamentally rejects separation of human beings from nature. It considers man as intimately connected and as such part of the natural environment.



acknowledges the conferring of legal personality to each distinct part of the environment

the legal orientation of the Ethiopian environmental law, it sounds haphazard and thus ambiguous; while the right to live in a clean and healthy environment under Art.44 of FDREC, the anthropocentric approach.

the environmental policy recognizes that the species and their variants have the right to continue existing, ecocentric view.

### **Legal Personality and Standing vis-à-vis the Future Generations**

-preserving natural systems for future generations so that the human species can perpetuate itself at the same quality of life and standard of living as the present generation.

-preserving area of national significance due to their aesthetic appeal, historic attributes, or ecological significance for the use and enjoyment of future generations.

In line with the constitutional and Environmental policy cognizance of intergenerational equity, the Environmental Law of Ethiopia defines protection of the environment to mean sustaining of the essential characteristic of nature.

### **2) Liberalization of Standing in Environmental Proceeding that Led to Public interest Litigation**

Under the traditional tort law, individual citizens have a right to sue only if their own personal interest is infringed.

personal action would certainly help in implementing and enforcing environmental laws and could be vital in cases where the government is unwilling to claim damages for injury to the environment.

if democracy is for all, if the rule of law is for all, and if justice is for all then standing should be for all as well.

principle 10 of the 1992 Rio Declaration and Agenda 21 to which Ethiopia is party supports a role for individuals in enforcing national laws and obligations before national courts and tribunals.

### **Citizen Standing in Cases of Environmental Authorities' Inaction or Abuse: Judicial Review**

if environmental authority acting illegally causes a specific legal injury to a person or a specific group of persons, a private action for redress would lie under the traditional doctrine of standing.

the HPR expanded the standing in environmental proceeding to enable every citizen to challenge such environmental authorities inaction or abuse in the interest of the public, though the citizen has not yet sustained personal injury.

**Citizen Standing to Challenge the Constitutionality of Environmental Laws-** issues of constitutionality are to be finally decided only by the HoF upon the recommendation of the council.

person challenging the constitutionality of an administrative action is not required to proceed to administrative officials and regular courts. he can directly take his case to the HoF if he proves that he is an interested party. FDRE Art 44(1), 92(4), Art. 11 of the Environmental pollution control procl.

every one has the right to live in a clean and healthy environment, and the duty to protect the environment. (presumed 2 've vested interest)

**Citizen Standing Before International Courts and Tribunals-** The doctrine of exhaustion of local remedies is a principle applicable.

the doctrine gives cognizance to states' sovereignty by bestowing them the first opportunity to solve their problems by themselves.

### **Recommendations for the Realization of Public Interest Litigation in Relation to Environmental Proceeding**

1. Mushrooming Co-operative and Collaborative effort- Public interest litigation is essentially a co-operative and collaborative effort on the part of petitioner, the state [public authority] and the court to secure

observance of the constitution or legal rights conferred upon the vulnerable section of the community.

2. Realizing Conducive Environment to Public Interest Groups- There is a practical problem of funds for public interest litigation petitions to be brought before the courts.

3. Managing Conflict of Interest, and Working as Hand and Glove-

4. Re-form on the Law which Governs Court Fee

*5. Freedom of Information and the Right to Know*

*6. The Role of Lawyers in Public Interest litigation-* making pro bono a requirement for renewing practice certificate may be one administrative mechanism to ensure compliance.

*7. The Creation of Separate and Independent Environmental Courts*

*8. The Role of Courts-* should be cautious and selective enough in accepting public interest litigation petitions so as to check massive inflow of frivolous petitions.

9. Pseudo Public Spirited Individuals- public interest litigation could be misused by people agitating for private grievances in the grab of public interest and seeking publicity rather than espousing public causes.

*10. Need for Mass Public Participation*

11. Enactment of Enabling Legislations

12. Forming a Special Environmental Public Prosecutor Office  
*13. Conducting Press Release*

14. Upgrading Assessment Machinery- The private losses due to the injury to the same resources are not included because we can address it otherwise through the tort law.

15. Reshuffling Environmental Institutions 16. Maintaining the Safety of Public Interest Groups

17. Entrenching Full-fledged Legal Action- the legal action should be against both the Environmental Authority, and the polluter's by and through applying the law of joinder of defendants.

### **Judicial Activism, and Environmental Rights Protection**

It is a legal process by which relief is provided to the disadvantaged and aggrieved party and thus where there is a gap in the legislation or the law is silent on a specific point and prompt redress is needed, the judiciary exercises its inherent power by virtue of being a custodian and watchdogs of the constitution.

One of the important justifications for judicial activism is that the legislature is uninterested in reframing the law and that the judges should therefore assume, take over, that task.

The other justification is protecting the interests of the weaker, downtrodden, unnoticed or relegated sections of the society.

the courts in India, particularly of the Supreme Court, created a new regime of normative rights by stating that 'the state cannot act arbitrarily but instead must act reasonably and in the public interest on the pain of its action being invalidated by judicial intervention.

A) Right to Protection of Constitutional Rights    B. Right to Environmental Protection

### **Judicial Activism Under the Ethiopian Legal System: Emphasis on Environmental Protection**

-criticism raised were the fact that since Ethiopia is a code based and adherents to the principle of legality which compels every interpretation of law given or forwarded by our judges to be predictable and uniform

- it is not the function of a judge to deviate from the clearly stipulated wordings of a given legal provision under the guise of judicial activism and to decide a given case handed to him.

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### CHAPTER 6

#### REMEDIES IN ENVIRONMENTAL PROCEEDING

##### **Some Guidelines for Assessing Sanctions in Environmental Cases-**

- Seriousness of the offence    -Economic gain        -Polluter pays
- Abatement costs- ensuring payment of costs of clean up, restoration or remediation
- Ability to pay

**Constitutional Law Remedies-** Article 37(2)(b) of the FDRE Constitution ensures that the door is wide open for the public interest groups to safeguard the environment, Article 44(2)

in case when any state program affects the interest of any person, the interested party or any public interest group could demand adequate, prompt and effective compensation as a legal remedy.

**Administrative Remedies-** z establishment of the Environmental Protection Authority & ozer organizations is made 2 facilitate.

Formulation of policies, strategies, laws, and standards, which foster social and economic development in a manner that enhances the welfare of humans and the safety of the environment sustainable, and to spearhead in ensuring the effectiveness of the process of their implementation.

**Civil Liability-** , liability for a tort arises when a wrongful act complained of amounts either to an infringement of a legal private right or a breach or violation of a legal duty (when there is public or private nuisance.)

Nuisance - to hurt or to annoy

Public or Common Nuisance is an act affecting the public at large or considerable portion of it; and it must interfere with the rights which members of the community might otherwise enjoy.

Private Nuisance is using or authorizing the use of one's property or of anything under one's control so as to injuriously affect an owner or occupier of property by physically injuring his property or by interfering materially with his health, comfort or convenience.

Remedies for Nuisance in Environmental Proceeding are, abatement, damages & injunction.

Injunctive relief is a long-standing remedy that can abate pollution or other environmental harm.

**Criminal Liability-** it is encompassed in the Criminal Code, and other enabling environmental statutes.

it is to express community rejection of the conduct and send a message of "deterrence" that discourages similar misconduct in the future.

**Enforcement of Judicial Decision-** The order of the court in execution proceedings constitutes a final judgment within the meaning of Art. 320(1).

In Ethiopia where the judgment-debtor refuses without good cause to comply with the decree; or the court is satisfied that the judgment-debtor, although able to comply with the decree, has willfully failed to do so, the court may order the arrest of the judgment-debtor and his detention in the civil prison for a period not exceeding six months.

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